

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LANCE HAMILTON and TREVOR BOWEN,

Index No.:

Plaintiffs,

SUMMONS

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NYPD SERGEANT JOSEPH
MONTUORI, SHIELD # 4222, NYPD DETECTIVE DAVID
SHAPIRO, SHIELD #6054, NYPD PO WILLIAM CONNICK,
SHIELD # 9546, NEW YORK CITY, NYPD POs JOHN DOES
"1-4",

Defendants.

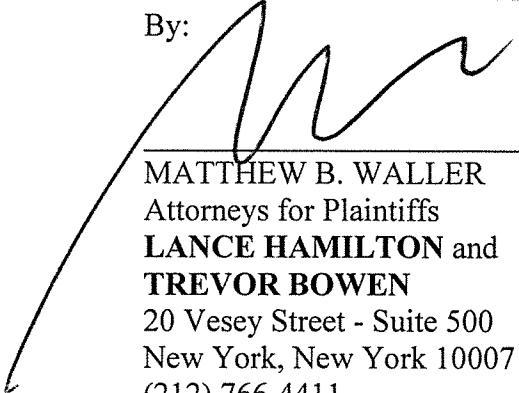
Plaintiff designates Bronx
County as the place of trial.The basis of venue is:
Defendants' place of
business:
103rd Precinct
168-02 91st Avenue
Jamaica, N.Y. 11434-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York, and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
February 16, 2017

LAW OFFICE OF MATTHEW B. WALLER

By:



MATTHEW B. WALLER
Attorneys for Plaintiffs
LANCE HAMILTON and
TREVOR BOWEN
20 Vesey Street - Suite 500
New York, New York 10007
(212) 766-4411

Defendants' Address:**THE CITY OF NEW YORK**

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

100 Church Street

New York, NY 10007

NYPD SERGEANT JOSEPH MONTUORI, SHIELD # 4222103rd Precinct168-02 91st Avenue

Jamaica, N.Y. 11434

NYPD DETECTIVE DAVID SHAPIRO, SHIELD #6054103rd Precinct168-02 91st Avenue

Jamaica, N.Y. 11434

NYPD P.O. WILLIAM CONNICK, SHIELD # 9546103rd Precinct168-02 91st Avenue

Jamaica, N.Y. 11434

NEW YORK CITY, NYPD POs JOHN DOES "1-4"103rd Precinct168-02 91st Avenue

Jamaica, N.Y. 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
LANCE HAMILTON and TREVOR BOWEN,

Plaintiffs,
-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NYPD SERGEANT JOSEPH
MONTUORI, SHIELD # 4222, NYPD DETECTIVE DAVID
SHAPIRO, SHIELD #6054, NYPD P.O. WILLIAM CONNICK,
SHIELD # 9546, and NYPD P.Os. JOHN DOES "1-4",
Defendants.

-----X
Plaintiffs by their attorney, **LAW OFFICE OF MATTHEW B. WALLER**, complaining of
the defendants, respectfully alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the common law and the laws of the State of New York. On August 5, 2010, plaintiffs were unlawfully detained, searched, arrested, and were falsely imprisoned and maliciously prosecuted by the defendants, City of New York, New York City Police Department, NYPD Sergeant Joseph Montuori, Shield # 4222, NYPD Detective David Shapiro, Shield #6054, NYPD PO William Connick, Shield # 9546, and NYPD POs John Does "1-4",

PARTIES

2. Plaintiffs are, and were, residents of the County of Queens, City and State of New York.
3. Defendant, **THE CITY OF NEW YORK**, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.
4. The defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

5. At all times relevant hereto defendant, **THE NEW YORK CITY POLICE DEPARTMENT** (hereinafter NYPD) is a city agency organized under the Municipal Corporation Law of the City of New York to provide safety to the citizens of New York.
6. NYPD Sergeant Joseph Montuori, Shield # 4222, herein after **Sgt. Montuori**, is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
7. NYPD Detective David Shapiro, Shield #6054, hereinafter **Det. Shapiro**, is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
8. NYPD P.O. William Connick, Shield # 9546, hereinafter **Officer Connick** is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
9. NYPD P.Os. John Does "1-4", hereinafter **Officers Does**, are and were at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department.
10. Defendant **Sgt. Montuori** is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department, assigned to the 101ST precinct.
11. Defendant **Sgt. Montuori** is being sued in his individual and official capacity.
12. At all times relevant herein, defendant **Sgt. Montuori** was acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and police officers of the **NEW YORK CITY POLICE DEPARTMENT**, and otherwise performed and engaged in conduct incidental to the performance of his lawful functions in the course of his duties.
13. Defendant **Det. Shapiro** is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department, assigned to the 103 Detective Squad.
14. Defendant **Det. Shapiro** is being sued in his individual and official capacity.
15. At all times relevant herein, defendant **Det. Shapiro** was acting under color of state law in the course and scope of his duties and functions as agents, servants, employees and police officers of the **NEW YORK CITY POLICE DEPARTMENT**, and otherwise performed and engaged in conduct incidental to the performance of his lawful functions in the course of his duties.

16. Defendant **Officer Connick** is and was at all times relevant herein an agent, servant, employee, and/or officer of the New York City Police Department, assigned to the 103rd precinct.
17. Defendant **Officer Connick** is being sued in his individual and official capacity.
18. At all times relevant herein, defendants **Officer Connick** was acting under color of state law in the course and scope of his duties and functions as agents, servants, employees and police officers of the **NEW YORK CITY POLICE DEPARTMENT**, and otherwise performed and engaged in conduct incidental to the performance of his lawful functions in the course of his duties.
19. Defendant **CITY OF NEW YORK** is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.
20. Defendant **CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
21. That at all times relevant hereto, defendant **THE NEW YORK CITY POLICE DEPARTMENT (NYPD)** is a city agency organized under the Municipal Corporation Law of the City of New York to provide safety to the citizens of New York.
22. Defendants **Officers Does** are and were at all times relevant herein police officers, employees, and agents of the **NEW YORK CITY POLICE DEPARTMENT**.
23. Defendants **Officers Does** are being sued in their individual capacities and official capacities.
24. At all times relevant herein, defendants **Officers Does** were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and police officers of the **NEW YORK CITY POLICE DEPARTMENT**, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.
25. Defendants **Officers Does** were acting for and on behalf of the **NEW YORK CITY POLICE DEPARTMENT**, at all times relevant herein, with the power and authority vested in them as police officers, agents and employees of the **NEW YORK CITY POLICE DEPARTMENT** and incidental to the lawful pursuit of their duties as police officers, employees and agents of the **NEW YORK CITY POLICE DEPARTMENT**.

26. At all times relevant hereto, defendants **Officers Does** are individuals whose identities are not yet known to plaintiff and upon information and belief, participated in conjunction with defendants in causing the illegal arrest of plaintiff.

NOTICE OF CLAIM

27. Plaintiff in furtherance of his stated cause(s) of action filed a timely Notice of Claim against the City of New York, within 90 days of the statutory date of accrual, in compliance with the Municipal Law Section 50-e.
28. That more than thirty (30) days have elapsed since the service of the Notice of Claim, and adjustment or payment has been neglected or refused by the City of New York.
29. This action is being commenced within the applicable statute of limitation, within one year and ninety days of the date of occurrence (the time provided by law).
30. Plaintiffs' are ready, willing and able to sit for a 50(h) hearing.

STATEMENT OF FACTS

31. The alleged incident took place on August 5, 2010.
32. On August 5, 2010, at approximately 05:20-05:45 A.M. in front of 147-67 109th Avenue, Jamaica, New York, in the County of Queens, the plaintiffs were alleged to have committed the murder of Damien Campbell by shooting him with a pistol.
33. Based upon alleged eyewitness testimony, the Plaintiffs were indicted and were incarcerated on Rikers Island, for over five years defending this case, indictment 2047/2010, Supreme Court, Queens County.
34. All of this alleged eyewitness testimony proved to be false at the trial before the Honorable Judge Richard Buchter, which commenced on September 30, 2015.
35. Moreover as it came to light during the initial trial and then again at the retrial, that exculpatory evidence had been discovered soon after the murder.
36. Specifically that the murder weapon used to murder Damien Campbell was shown to have been used less than two (2) days earlier by Shamiel Corbett who had shot one Kamar Haughton. Further the decedent's cellular telephone was found in Shamiel Corbett's possession upon his arrest on August 5, 2010 at 2:30 PM, less than 9 hours after the murder/homicide of Damien Campbell.

37. Throughout the entire process, plaintiffs maintained their innocence.
38. In fact upon the arrest of three of the four persons charged with the murder, they indicated to the police that Shamiek Corbett was the murderer of Damien Campbell and not them.
39. This information was provided to them by Nathaniel Newsom, who was arrested within minutes of the homicide and soon thereafter by Bowen and Trotty.
40. The Police and the District Attorney's Office were on notice as to who they should be looking at as the true suspect of the murder of Damien Campbell.
41. Although the plaintiffs were offer pleas, the Plaintiffs refused all offers and insisted the matter go to trial to prove their innocence.
42. Nonetheless, on or about May 12, 2014, the trial of the matter was commenced in the Supreme Court of the State of New York, Queens County, Criminal Term, Part TAP B.
43. During jury selection, Assistant District Attorney Karen Ross turned over material that been in their possession since the case's inception.
44. Most of the material was discovery material which should have been turned over long before trial commenced.
45. Hidden in this material was a Complaint Follow-Up Report number 58 (authored by Det. James Lusk, shield #4127, then of the NYPD 103rd Precinct Detective Squad) which indicated that the weapon used in this homicide of Damien Campbell had been used in an incident on August 3, 2010 at about 11:45 to 11:52 A.M., less than 48 hours prior to the homicide by Shamiek Corbett. Judge Buchter declared a mistrial.
46. This crucial and pivotal piece of evidence was a ballistic report, lab number 2010 F4458 dated August 25, 2010 (authored by Det. Gregory DiCostanzo, shield #7077, NYPD Firearms Analysis Section), that revealed that the gun used in the murder of Damien Campbell, had been used two days earlier in a different shooting by another individual, Shameik Corbett, who was currently being prosecuted for attempted murder (Queens Indictment number 2070/10) by the Queens District Attorney's Office and for a murder (Queens Indictment number 3286/2010) as well by the same assistant district attorney, Karen Ross, that was handling the Plaintiffs murder case.
47. When this issue was raised as a Brady violation by Mr. Hamilton's defense counsel, Judge Buchter then declared a mistrial.
48. After more than a year went by, before the matter was finally scheduled again for trial.

49. Seemingly something that is more likely to be part of a Hollywood script, the second trial perhaps was met with even more egregious error.
50. Treating the plaintiffs with zero regard for their lives, spending over five years at Rikers Island, the same district attorney, failed to reveal that the decedent's phone was found in Shamiek Corbett's possession upon his arrest about 9 hours after the homicide.
51. This information was buried in thousands of pages of paperwork and was never revealed as Brady material by the District attorney as required by State and federal law.
52. The information concerning the weapon and the telephone was developed by Mr. Hamilton's criminal defense counsel from the materials provided by the District Attorney, the very same materials available to the police and District Attorney at the time of the initial arrest of the plaintiff.
53. Now not only was the gun which was used in Damien Campbell homicide in Corbett's possession, but the decedent's phone as well. All these things were known to the police close in time to the arrests of the plaintiffs.
54. The only witness identified by the prosecution was Jaysha Hemingway.
55. During the trial, the only alleged eyewitness, Jaysha Hemingway, was unable to make any identification of the plaintiffs, Hamilton and Bowen, in court as being involved. The witness identified Mr. Newsom as the shooter and he was arrested within minutes of the shooting at the scene, but gunshot residue testing proved negative for Mr. Newsom clothing.
56. Ms. Hemingway had alleged in the Grand Jury that all four men arrested had fired guns into the car containing the deceased, but the ballistics evidence proved only one gun was used.
57. She also alleged that all four men had touched the car and had entered the vehicle or taken something out of the vehicle, but no fingerprints, of the four men charged, were recovered from the vehicle.
58. Ms. Hemingway also claimed to have clearly seen the incident and the four perpetrators, but her own testimony clearly puts doubt to that.
59. In the first instance, the evidence shows Ms. Hemingway view of two of the alleged perpetrators would have been blocked and that she made these observations in the dark from approximately 138 feet away across a busy street.

60. Ms. Hemingway testified the four accused men touched the decedent's car repeatedly and entered it to remove some unknown items, but no fingerprints of any of the accused men were recovered from the vehicle.
61. These were some of the things to which Ms. Hemingway testified which at best could be called inconsistencies, but clearly could be deemed lies.
62. Had the assigned investigator, defendant **Det. Shapiro**, made the slightest effort to properly investigate the crime he would have known that Ms. Hemingway was either a liar or she was mistaken. **Det. Shapiro** failed to properly investigate this matter.
63. In his trial testimony defendant **Det. Shapiro** revealed that he never went to the crime scene. Defendant **Det. Shapiro** made a material error when he spoke to Ms. Hemingway and chose believed her to be on the corner closest to the shooting rather than the location Ms. Hemingway testified to, which was the roadway some 138 feet from the shooting area.
64. Had defendant **Det. Shapiro** properly investigated this case, he would have determined that where Ms. Hemingway claimed to have been situated during her alleged observations of the murder, he would or should have known she was either lying or mistaken of her observation.
65. Further, due to the existence of a video tape of the scene which captured that location, and in the words of defendant **Det. Shapiro**, did not show Ms. Hemingway there until after the shooting had occurred the plaintiff should not have been arrested based on her statements.
66. Honorable Justice Buchter entered a Trial Order of Dismissal as to plaintiff Hamilton, not allowing the case to go to the jury, because Ms. Hemingway never identified Mr. Hamilton as being at the scene of the murder, as the evidence was insufficient as a matter of law and the case was dismissed on November 24, 2015.
67. Shortly thereafter, the jury returned a verdict acquitting plaintiff Bowen of all charges on December 8, 2015.
68. Upon information and belief, defendants failed to properly investigate the subject incident/matter as there simply was no evidence to support the arrest. Plaintiffs were falsely arrested and falsely imprisoned.
69. Upon information and belief at no time did the defendants have probable cause or any objective reason to believe plaintiffs committed a crime.
70. Had the police and District Attorney properly investigated this case/matter they would have realized that there was no credible evidence against the Plaintiffs and that most certainly the actual killer was Shamiek Corbett.

71. As stated above, the eyewitness presented/produced was not credible and she had given misleading evidence, but more important, the instrument used in this murder and the decedent's recovered phone, the most important pieces evidences, were concealed by the defendants and buried by the prosecution.
72. Upon information and belief, no reasonable police officer would have believed that they had probable cause to arrest plaintiff(s) as the plaintiff(s) did not commit the crime.
73. Upon information and belief despite knowing all these facts, the defendants nevertheless falsely arrested and imprisoned the plaintiffs without probable cause or legal justification for over five years.
74. Had the police and District Attorney properly turned over the Brady material, there is a substantial likelihood that the plaintiffs bail could have been altered from remand to an amount that could have been made, thus allowing them to be at liberty until the case was concluded and lessening the time that they had to spend in jail.
75. The false arrest and false imprisonment and malicious prosecution of the plaintiffs by the defendants caused them to sustain physical, psychological and emotional trauma.
76. It must be noted that plaintiff Hamilton sustained an assault while incarcerated resulting in lacerations to his face and plaintiff Bowen had charges claiming that he assaulted a Correction officers which proved to be untrue as that case which was pending in Bronx County was dismissed in its entirety.
77. The plaintiffs were arrested and incarcerated during a period of their lives when they should have been free and able to continue to pursue their livelihood and should not have been deprived of their liberty. Instead they were incarcerated for over 5 years and made to defend a criminal case.
78. The defendants ignored evidence and they ignored the truth.

**AND AS FOR PLAINTIFF'S FIRST
CAUSE OF ACTION FOR: MALICIOUS PROSECUTION**

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "78" with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.
81. Defendants commenced and continued a criminal proceeding against plaintiff.
82. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff, and for the charge(s) for which he was prosecuted.
83. The prosecution and criminal proceedings terminated favorably to the plaintiff.
84. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
85. Defendants, **Sgt. Montuori Det. Shapiro Officer Connick and Officers Does**, were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
86. The City of New York and the New York City Police Department, as the employer of the defendants, **Sgt. Montuori Det. Shapiro Officer Connick and Officers Does**, are responsible for their wrongdoing under the doctrine of respondeat superior.
87. That by reason of the foregoing, plaintiffs have been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S SECOND CAUSE OF ACTION
FOR NEGLIGENT HIRING, RETENTION,
TRAINING AND SUPERVISION**

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "87" with the same force and effect as if more fully set forth at length herein.
89. At all relevant times hereto, defendants **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT** had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officer(s) in the protection of the rights of the plaintiff under the laws of the State of New York.
90. The City of New York and the New York City Police Department and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the defendants, **Sgt. Montuori**

Det. Shapiro Officer Connick and Officers Does, who were unfit for the performance of police duties on the aforementioned date, at the aforementioned location.

91. That by reason of the foregoing, plaintiffs have been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S THIRD CAUSE OF ACTION
FOR: NEGLIGENT INFLICTION OF EMOTION DISTRESS**

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "91" with the same force and effect as if more fully set forth at length herein.
93. By the actions described herein defendant Officer(s) engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injuries and damages to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed to plaintiffs by the laws and Constitution of the State of New York.
94. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
95. The City of New York and New York City Police Department, as the employer of the police officer defendants, are responsible for their wrongdoing under the doctrine of respondeat superior.
96. That by reason of the foregoing, plaintiffs have been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
97. That this action falls within one or more of the exceptions set forth in C.P.L.R. §1602.
98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

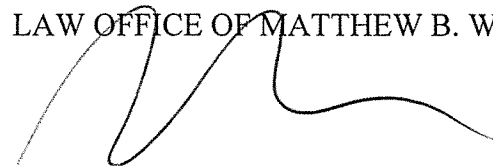
WHEREFORE, plaintiffs demands judgment against the defendants on each cause of action in an amount exceeding the jurisdictional limits of all lower courts which would otherwise

have jurisdiction together with the costs, interests and disbursement of this action, and such other relief as is appropriate under the law.

Dated: New York, N.Y.
February 16, 2017

LAW OFFICE OF MATTHEW B. WALLER

By:



MATTHEW B. WALLER

Attorney for Plaintiffs

LANCE HAMILTON and

TREVOR BOWEN

20 Vesey Street - Suite 500

New York, New York 10007

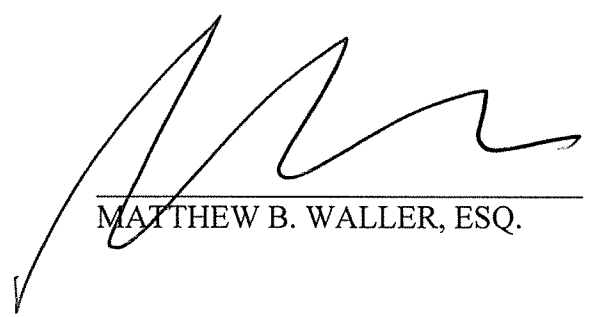
212-766-4404

ATTORNEY'S VERIFICATION

MATTHEW B. WALLER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiff is that the Plaintiff does not reside in the county wherein I maintain my office.

Dated: New York, N.Y.
February 16, 2017



MATTHEW B. WALLER, ESQ.

Index No.: _____

Year: _____

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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-against-

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SHIELD # 9546, NEW YORK CITY, NYPD POs JOHN DOES "1-4",

Defendants.

VERIFIED COMPLAINT

LAW OFFICE OF MATTHEW WALLER

Attorneys for Plaintiff

JOSE SANTOS

20 Vesey Street - Suite 500

New York, N.Y. 10007

212-766-4411

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____

Signed: _____

Service of a copy of the within

is hereby admitted.

Dated: _____

Attorney(s) for